

APPLICATION for REGULAR adoption

procedure

- Inquire at RACCO or NACC for initial assessment and get the schedule of Pre-Adoption Forum of the RACCO.
- Attend the Pre-Adoption Forum where the requirements, processes, benefits and effects of Legal Adoption are discussed.
- The Certificate of Attendance to the forum is a mandatory requirement.
- Secure the documentary requirements as discussed in the forum and prepare the Petition for Adoption.
- Coordinate with the social worker for the preparation of Social Case Study Report.
- Once the Petition is done and the supporting documents are complete, file at the RACCO which has jurisdiction over the place where the PAPs reside.
- The RACCO will issue an Order to publish the petition and come at a specified date for the Mandatory Appearance (MA) before the RACC Officer.
- Once MA is done, the RACCO will undertake its internal processes to package (with complete documentation i.e. MA process recording, case brief, recommendation) and transmit the Petition to the NACC.
- Petitioner to await the NACC Undersecretary's Decision on the Petition through the RACCO. If NACC requires additional proof that will aid in its decision, the petitioner to comply within 15 working days. If granted, Petitioner will receive an Order of Adoption otherwise, petitioner will receive a Denial on which Motion for Reconsideration (MR) may be resorted to. If MR is denied again, the Petitioner may file for an Appeal to the NACC Council or Court of Appeals.
- After receipt of the Order of Adoption, the Petitioner with or without the assistance of the adoption social worker, to provide the concerned Local Civil Registrar (LCR) with a copy of the Order of Adoption. Petitioner to submit to the RACCO an acknowledgment of the Order of Adoption.
- After receipt of the proof Acknowledgment by the parties (from RACCO, Petitioner & LCR) will facilitate the Certificate of Finality (COF) of the Order.

- The Petitioner with or without the assistance of the social worker, to register the Order of Adoption together with the COF and draft Certificate of Live Birth (COLB) at the concerned LCR.
- The Petitioner, in close coordination with the LCR to request for the new COLB from PSA and provide copy to the RACCO.
- Coordinate with the adoption social worker regarding the adjustment of the child or significant developments within one (1) year after the finalization of legal adoption.

Documentary Requirements for Regular Adoption

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The PAP/s shall attach the following to the notarized Petition for Adoption and file the same with the

1. Child Case Study Report and Home Study Report or Social Case Study Report, whichever the circumstances;
2. PSA copies of the birth record of the PAP/s and the child;
3. PSA copies of the Marriage Certificate or Certificate of No Marriage Record (CENOMAR), in termination of marriage, or Authenticated Divorce papers with copy of court decision and Certificate of Live Birth, if foreign applicant; Decree of Annulment, Decree of Nullity of Marriage, or Decree of Legal Separation, if Filipino applicant; PSA copy of the Certificate of Marriage with annotation of the annulment of marriage, declaration of legal separation or legal separation for Filipino applicant;
4. NBI or Police Clearance or Court Clearances; If foreign national, clearance from police authorities of the country where he or she has lived for more than 12 months any time in the past 15 years;
5. PSA copy of the Death Certificate of the child's biological parents, if applicable;
6. Written consent of the child **ten years of age or over**;
7. Written consent of marital and adopted children of PAP/s, **ten years of age or over**;
8. Written consent of non-marital children, **ten years of age or over**, of whom the PAP/s is living with, or of whom PAP/s exercises parental authority;
9. Written consent of the biological father or mother of the marital child or of the biological non-marital child, or the person/s exercising substitute parental authority over such child, to be adopted, if the adoptee is already an adult; when the adoptee is already an adult;
10. Result of the recent medical evaluation of the child and the PAP/s prepared within six months of the application. This requirement may be waived when the adoptee is already an adult;

11. Psychological evaluation of the PAP prepared within two years based on the date of the report;
12. Psychological evaluation of the child, for children **five years old and above** prepared within two years based on the date of the report, as recommended by the social worker especially when the adoptee is already in the home;
13. Letters attesting to the character and general reputation of the PAP/s from at least **three** non-related references, of one preferably from an employer or supervisor or with whom the PAP/s have business contact details of the person attesting and the date when the letter was prepared must be indicated;
14. Recent 5R (127×178 millimeter) close-up and whole-body pictures of the adoptee and the biological parent/s within the last six months; The date when the photo was taken must be indicated; and
15. Documents showing the financial capacity of the PAP/s.
16. Original CDCLAA of the child.

a) Additional Requirements.

In addition, The following documents, some of which may be secured before or after the filing of the petition, must also be attached or submitted to the RACCO, viz:

1. Certificate of Attendance at Pre-Adoption Forum, Training and Seminars;
2. Certificate of Attendance at Pre-Adoption Forum, Training and Seminars;
3. Verification and Certification against Non-Forum Shopping, when applicable;
4. Certificate of Authority for a Notarial Act of the Petition;
5. Tri-media posting certificate/s as proof of efforts to locate the other biological parent, if the adoptee is a minor child;
6. Certificate of Presentation, as applicable;
7. PAPA;
8. Post-placement Report, as applicable; and,
9. Order from the court approving the withdrawal of the case or order of dismissal or Decision on Dismissal, if it has been previously filed with the court;
10. Certificate or Affidavit of Publication; and
11. Other documents may be required by the RACCO to support the petition.